

# Assignment Brief: Critical Analysis of Rights, Regulation, and Dispute Resolution in Institutional Care

**Course/Module:** Balancing Duty of Care with Dignity of Risk

**Assessment Weight:** 100 Marks (100% of Assignment Grade)

**Format:** ShortEssay/Critical Responses

**Expected Length:** 300–450 words per question (3,000–4,500 words total)

## Instructions to Students

This assignment requires you to critically evaluate contemporary frameworks in institutional care, ethics, law, and quality improvement. While these themes may have been introduced in course webinars, **every response must be grounded in independent external research.**

You must cite external literature, legal statutes, sociological concepts, or comparative international frameworks as specified in each prompt. Ensure all sources are correctly cited using the required academic referencing style (e.g., APA 7th Edition).

### Question 1:

The upcoming reforms introduce a "positive duty" for providers to uphold a formal statement of rights for older people. Research the legal concept of a "positive duty" in anti-discrimination or human rights law. How does a positive duty differ from a traditional compliance model, and what specific proactive measures must organizations take to demonstrate they are meeting this standard?

### Question 2:

The updated program features a dedicated end-of-life pathway with specific funding to increase the percentage of individuals who can choose to pass away at home. Research external demographic or healthcare studies to identify the primary systemic, clinical, and sociological barriers that currently prevent the majority of older adults from receiving end-of-life care in their own homes.

### Question 3:

A new funding model pre-approves a set budget for assistive technology and home modifications to prevent individuals from rationing their package funds. Research the role of occupational therapy in preventative gerontology. What specific early home interventions and modifications have been statistically proven to reduce hospitalization rates from falls among older adults?

**Question 4:**

The transition to the new funding model utilizes a "no worse off" principle (often referred to as grandparenting) to protect existing care recipients from increased costs. Research public policy transition frameworks. What are the long-term financial, equity, and administrative challenges a government faces when running parallel funding models (legacy versus new) simultaneously?

**Question 5:**

The updated framework introduces a specialized assessment pathway for First Nations people utilizing a "yarning approach" to ensure trauma-aware and healing-informed care. Research the concept of "cultural safety" in Indigenous healthcare. How does a yarning methodology effectively bypass the limitations and potential biases of standardized, clinical assessment questionnaires?

**Question 6:**

Under the new fee structure, clinical care services are fully subsidized (0% user contribution), while everyday living assistance requires a means-tested co-contribution. Research the economic theory of "merit goods" versus "private goods" in healthcare economics. How can this bifurcated pricing strategy be justified from a public health funding perspective?

**Question 7:**

The regulatory rollout allows care providers to set their own market prices for the first year before government-mandated price caps are enforced. Research external economic literature on the implementation of price ceilings in healthcare markets. What are the potential risks, such as service shortages or quality reduction, associated with imposing hard price caps on care providers?

**Question 8:**

The program includes a targeted short-term restorative care pathway designed to rehabilitate individuals after an acute hospital stay. Research the clinical concept of "deconditioning" in older adults post-hospitalization. What multidisciplinary interventions are required within the first three months post-discharge to effectively reverse deconditioning and restore independent living capacity?

**Question 9:**

The upcoming reforms emphasize consumer-directed care, allowing individuals to actively self-manage their service agreements and direct the frequency of contact with their "care partners." Research the psychological impact of autonomy on aging populations. How does increased self-determination in healthcare planning correlate with long-term cognitive and mental health outcomes?

**Question 10:**

The new system involves amalgamating two previously separate national home support programs into a single, unified structure with a consolidated assessment workforce. Research organizational change management regarding large-scale public sector program mergers. What are the most common data-integration and structural hurdles government agencies face when combining massive, legacy healthcare delivery systems?

## Marking Scheme & Grading Rubric (100 Marks Total)

Each of the 10 questions is worth **10 marks**, assessed against the following criteria:

|                         |           |                                                                                                                                                                    |
|-------------------------|-----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>High Distinction</b> | 9 - 10    | Exceptional synthesis of external research. Argument is highly critical, nuanced, and perfectly directly addresses all parts of the prompt. Flawless referencing.  |
| <b>Distinction</b>      | 7.5 - 8.5 | Strong integration of external concepts. Solid analysis with clear logical flow. Minor gaps in depth or minor formatting issues.                                   |
| <b>Credit</b>           | 6 - 7     | Adequate research, though relies on basic definitions. Analysis is present but lacks critical depth or systemic insight. Competent writing and referencing.        |
| <b>Pass</b>             | 5 - 5.5   | Barely addresses the prompt. Heavy reliance on course materials rather than independent external research. Descriptive rather than analytical.                     |
| <b>Fail</b>             | 0 - 4.5   | Fails to answer the prompt. Missing external research entirely. Poorly structured, lacking citations, or demonstrating fundamental misunderstandings of the topic. |